

25VECV02750 25VECV02750

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Case Number: 25VECV02750 Hearing Date: August 11, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

SHADY GROVE PL INVESTMENTS LLC, a California limited liability company,

Plaintiff,

vs.

DLA INVESTMENTS, LLC, a California limited liability company; MAURICIO VIVANCO, an individual; AMY WEBER, an individual; and DOES 1-10 inclusive,

Defendants.

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CASE NO.: 25VECV02750

ORDER

GRANTING DEFENDANT AMY WEBER'S MOTION TO SET ASIDE THE DEFAULT AND DEFAULT
JUDGMENT

I.

BACKGROUND

Shady Grove PL

Investments LLC ("Plaintiff") filed this action against DLA Investments, LLC
("DLA"), Mauricio Vivanco ("Vivanco"), and Amy Weber ("Weber") (jointly,
"Defendants"). Plaintiff alleges Weber is a licensed real estate broker or

agent whom represented Sellers DLA and Vivanco and made/relayed text messages in October 2024 and January-March 2025 concerning the sale of real property located at 16417-19 Victory Blvd., Van Nuys CA 91406 ("Property"). Plaintiff alleges Defendants misrepresented to Plaintiff the soil under the Property was fit for immediate commencement of digging and construction when it was not.

Weber now moves to set aside the default and default judgment entered against her pursuant to Code of Civil Procedure §§ 473.5 and 473(b)[1].

II.

PROCEDURAL

HISTORY

On May 16, 2025, Plaintiff filed a Complaint alleging (1) Fraud, (2) Business & Professions Code 17200, (3) Breach of Fiduciary Duty, and (4) Negligent Misrepresentation.

On July 28, 2025, default was entered against Weber.

On September 8, 2025, Plaintiff dismissed DLA and Vivanco.

On March 11, 2026, the Court entered default judgment against Weber.

On July 8, 2026, Weber filed the instant Motion.

On July 17, 2026, Plaintiff filed an Opposition.

On August 4, 2026, Weber filed a Reply.

III.

LEGAL STANDARD

A.

Discretionary or Mandatory Relief –
Code of Civil Procedure § 473(b)

“The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken...” (Code Civ. Proc. § 473(b).)

Code of Civil

Procedure § 473(b) “provides for both discretionary and mandatory relief. [Citation.]” (Pagnini v. Union Bank, N.A. (2018) 28 Cal.App.5th 298, 302.)

For

discretionary relief, “[t]he court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc. § 473(b).)

A moving

party need only establish “mistake, inadvertence, surprise, or excusable neglect” by a preponderance of the evidence. (Luz v. Lopes (1960) 55 Cal.2d 54, 62.) Excusable neglect exists where counsel or the party acted as a reasonably prudent person would under the circumstances. (See Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1206; See also Zamora v. Clayborn Contracting Group, Inc. (2002) 28 Cal.4th 249, 258.) Attorney negligence is not a basis for discretionary relief under Code of Civil Procedure § 473. (See Pazderka v. Caballeros Dimas Alang, Inc. (1998) 62 Cal.App.4th 658, 672; see also Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 682.)

An

application for discretionary or mandatory relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought. (See Code Civ. Proc. § 473(b); see also English v. IKON Bus. Solutions (2001) 94 Cal.App.4th 130, 143.)

B.

Lack of Actual Notice - Code of Civil
Procedure § 473.5

Code of Civil

Procedure § 473.5 permits the Court to vacate a default when service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him. (See Code Civ. Proc. § 473.5(a).) “The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service... of a written notice that the default or default judgment has been entered.” (Id.)

The phrase

actual notice means genuine knowledge and does not include constructive or imputed notice to the client. (See Tunis v. Barrow (1986) 184 Cal.App.3d 1069, 1077.) “A defendant seeking vacation of a default judgment entered against him must further show that his lack of actual notice in time to defend the action was not caused by his inexcusable neglect or avoidance of service.” (Id. at 1077-1078, citing Code Civ. Proc. § 473.5(c).) Additionally, “the party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” (Code Civ. Proc. § 473.5(b).)

Moreover, it

is well established that the court is “not required to accept...self-serving evidence contradicting the process server’s declaration.” (Rodriguez v. Nam Min Cho (2015) 236 Cal.App.4th 742, 751.)

IV.

ANALYSIS

A.

Evidentiary Objections

The Court

rules as follows on Weber's evidentiary objections to the Declaration of Brian Lee.

Sustained: Nos.

1 (as to "Amy Weber herself" and "wrote in the address as her business and contact address as broker"), 5.

Overruled: Nos.

2-4, 6.

B.

Lack of Actual Notice

Code of

Procedure § 473.5 is designed to provide relief where there has been proper service of summons (e.g., by substitute service or by publication) but defendant nevertheless did not find out about the action in time to defend. Typically, these are cases in which service was made by publication. (See *Randall v. Randall* (1928) 203 Cal. 462, 464-465.) A defendant is entitled to relief under § 473.5 if defendant has not received actual notice of the proceedings. Imputed or constructive notice is not "actual" notice. (See *Rosenthal v. Garner* (1983) 142 Cal.App.3d 891, 895.)

Weber argues

she did not receive actual notice of the summons and Complaint. Weber submits the declaration of Mark Olivas, the receptionist who was purportedly sub-served on behalf of Weber at 680 E. Colorado Blvd., 4th Floor, Pasadena, CA 91101 (the "Compass Pasadena Office"). Olivas attests he does not recall having accepted any legal documents for Weber on May 27, 2025, or any other time in May 2025. (See Compendium, Ex. A - Declaration of Mark Olivas, ¶¶ 6-7.) Weber attests "Compass has procedures in place for handling any legal papers served on, or received by mail, at an office or branch. I was never notified that legal documents had been purportedly delivered to Compass nor was I ever presented with legal documents that had been purportedly delivered to Compass." (See Compendium, Ex. C - Declaration of Amy Weber, ¶ 17; Ex. B - Declaration of

Edward Afsharian, ¶¶ 6-9.) Additionally, Weber attests she was never contacted regarding legal documents that had been mailed to the Compass Pasadena Office. (See id., Ex. B - Declaration of Amy Weber, ¶ 18.) Weber attests she does not work in person at the Compass Pasadena Office. (See id., Ex. B - Declaration of Amy Weber, ¶ 5.)

Weber further attests she did not receive any legal documents at her publicly available mailing address as listed on her DRE license information. (See id., Ex. B –Declaration of Amy Weber, ¶ 19.) Weber attests she did not have actual notice of this action until March 10, 2026, when she was contacted by Vivanco by text message requesting she immediately call him. (See id., Ex. B – Declaration of Amy Weber, ¶ 11.) Finally, Weber attests “My failure to obtain actual notice of service of the Summons and Complaint in time to defend this action did not result from any attempt on my part to avoid service.” (See id., Ex. B – Declaration of Amy Weber, ¶ 21.)

In opposition, Plaintiff argues Weber is not entitled to relief under §473.5 because the Purchase Agreement dated October 22, 2024, lists the Compass Pasadena Office address, Weber was properly served at her place of work on May 27, 2025, Weber’s counsel attended the March 11, 2026 hearing, and Weber fails to attach proof of the text message she purportedly received notice of this action from. (See Opp. at 2:1-24; Declaration of Brian W. Lee filed on July 17, 2026, ¶ 3, Ex. 1 at 17.)

In reply, Weber argues the undisputed evidence shows Weber lacked actual notice, did not avoid service, acted diligently once she learned of the lawsuit, and included a proposed answer with her motion. (See Reply at 2:3-5.)

The Court finds Weber has sufficiently shown she lacked actual notice of this action in time to defend and is entitled to relief under § 473.5. First, the Court finds the Motion is timely as it was served within two years from entry of default judgment on March 11, 2026.

Next, the Court finds the evidence indicates Weber did not receive actual notice of this action. Here, the proof of service shows Mark Olivas, receptionist, was served

on behalf of Weber at the Compass Pasadena Office. (See Proof of Service filed July 28, 2025.) The Purchase Agreement lists the Compass Pasadena Office because this is Compass', or the seller's brokerage, firm address. Though Plaintiff reasonably served Weber at the Compass Pasadena Office, Weber's evidence shows she did not receive notice of the Summons and Complaint as she ultimately did not receive any legal documents which would have been processed per established office procedures. Weber also did not work in person at the office such that she could have been verbally notified that she received legal documents. Weber's declaration shows she did not receive actual notice of this action until March 10, 2026, which is when she contacted her attorney and he accordingly attended the March 11, 2026 hearing. Finally, Weber attests her lack of actual notice was not due to avoiding service and she submits a copy of her proposed Answer. (See Compendium, Ex. D – Declaration of Sean Macias, Ex. 10.)

Based on the foregoing, the Court finds Weber is entitled to relief from default and default judgment pursuant to Code of Civil Procedure § 473.5. Because relief is granted on this basis, the Court need not address whether Weber is entitled to relief under section 473(b). Thus, the Court GRANTS Weber's Motion to Set Aside Default and Default Judgment.

V.

CONCLUSION

Based on the foregoing, the Court GRANTS Weber's Motion to Set Aside Default and Default Judgment.

Weber is ordered to file her Proposed Answer by no later than August 14, 2026.

In addition, the Court sets a Case Management Conference for December 16, 2026, at 8:30 a.m.

IT
IS SO ORDERED.

DATED: August 11, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.